

25STCV26233 25STCV26233

County: los-angeles

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Case Number: 25STCV26233 Hearing Date: July 10, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

RAUL ORTIZ,

Plaintiff,

vs.

2018 GLENDON AVE, LLC., et al.,

Defendants.

Case No.:

25STCV26233

Hearing Date:

July 10, 2026

Hearing Time:

10:00 a.m.

[TENTATIVE] ORDER RE:

DEFENDANTS 2018 GLENDON AVE, LLC KAYVAN ABSELET, AND DENNIS P.
BLOCK & ASSOCIATES, APC'S MOTION TO STRIKE THE FIRST AMENDED COMPLAINT

Background

On September 9, 2025,
Plaintiff Raul Ortiz, in pro per, filed a complaint against Defendants 2018 Glendon Ave, LLC., Kayvan Abselet, and
Dennis P. Block & Associates, APC (erroneously sued as Dennis Block &
Associates) (collectively, "Defendants") alleging seven causes of action for (1)
discrimination - Cal. Gov. Code § 12940 et seq. &
California Constitution, Article I, §§ 7 & 31; (2) defamation; (3) intentional
infliction of emotional distress; (4) negligent infliction of emotional
distress; (5) financial loss/distress; (6) violation of civil rights - 42 U.S.C. §§1981, 1982 & California
Civil Code §§51, 52; and (7) wrongful eviction.

On September 22, 2025, Plaintiffs
Raul Ortiz and Rita Ortiz (jointly, "Plaintiffs") filed a first amended
complaint ("FAC") alleging nine causes of action. The FAC added two causes of
action for (8) fraud and (9) breach of contract.

On October 6, 2025, Defendants
filed a special motion to strike Plaintiff Raul Ortiz's complaint under the Strategic
Lawsuit Against Public Participation statute ("anti-SLAPP"). On February 10,
2026, the Court granted Defendants' special motion to strike in its entirety.
In the Order, the Court noted that "Defendants' anti-SLAPP addresses the
complaint, not the FAC. It is unclear whether Plaintiff served Defendants
because the Court does not have proof of service for the FAC. Plaintiff did not
file an opposition." (Order 2/10/26, 2:16-18.) On February 19, 2026, Plaintiffs
filed proof of service for the FAC.

Defendants now move to
strike the FAC in its entirety or, in the alternative, paragraphs one, eleven,
and twelve, as well as the second through seventh causes of action. Plaintiffs did
not oppose.

Request for Judicial

Notice

The Court grants Defendants' requests for judicial notice of Exhibits A, B, and C.

Legal Standard

A

court may "[s]trikeout any irrelevant, false, or improper matter inserted in any pleading" or "[s]trike out all or any part of any pleading "not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436, subds.

(a)-(b).) "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc., § 437.)

"Where

the defect raised by a motion to strike or by demurrer is reasonably capable of cure, leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question. [Citations.] A pleading may be stricken only upon terms the court deems proper [citation], that is, terms that are just. [Citations.] It is generally an abuse of discretion to deny leave to amend, because the drastic step of denial of the opportunity to correct the curable defect effectively terminates the pleader's action." (Velez v. Smith (2006) 142 Cal.App.4th 1154, 1174-1175 [internal quotations omitted].)

Discussion

Defendants contend that the FAC should be stricken because "Defendants filed an anti-slap motion to strike which sought to strike the identical matters that are the subject of the present notice of motion, except that the present motion refers to the First Amended Complaint, rather than to the original Complaint." (Mot., 5:1-4.)

"[A] plaintiff whose complaint is stricken by

a successful anti-SLAPP motion cannot try again with an amended complaint.'

[Citation.] 'Once the trial court has determined the speech at issue is constitutionally protected, it may not grant leave to amend to omit facts to take the claim out of the protection of section 425.16.'

[Citation.] Allowing an amendment 'once the court finds the prima facie showing has been met would completely undermine the statute by providing the pleader a

ready escape from section 425.16's quick dismissal remedy. Instead of having to show a probability of success on the merits, the SLAPP plaintiff would be able to go back to the drawing board with a second opportunity to disguise the vexatious nature of the suit through more artful pleading.” ((Finato v. Keith A. Fink & Associates (2021) 68 Cal.App.5th 136, 149.)

Defendants assert that “[t]he anti-slapp motion was granted by the court, and Plaintiff then proceeded to file a First Amende[d] Complaint realleging the same matters that were the subject of the court's order granting the anti-slapp motion. Based on the foregoing authorities, this motion to strike should be granted with respect to the First Amended Complaint.” (Mot., 5:6-9.) The Court notes that the FAC purports to add two new causes of action; however, the body of the FAC does not include clear headings or allegations for the added fraud and breach of contract causes of action. Accordingly, the FAC is almost identical to the complaint for which the Court granted the anti-SLAPP.

Although Plaintiffs filed the FAC before Defendants filed their anti-SLAPP motion, Plaintiffs' proof of service demonstrates that service was effectuated on December 2, 2025. Notably, this is two months after Defendants filed the anti-SLAPP. Under Code of Civil Procedure section 472, subdivision (a), a party normally may amend a complaint as of right before a “demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike.” However, this section explicitly excludes “a special motion brought pursuant to Section 425.16.” (Code Civ. Proc., § 472, subd. (b).) Without proper service on Defendants prior to their filing of the anti-SLAPP, the FAC cannot supersede the original complaint. (See Code Civ. Proc., § 471.5, subd. (a) [“If the complaint is amended, a copy of the amendments shall be filed, ... and a copy of the amendments or amended complaint must be served upon the defendants affected thereby. The defendant shall answer the amendments, or the complaint as amended, within 30 days after service thereof...” (emphasis added)].)

Accordingly, the FAC is improper and must be stricken.

Conclusion

Based

on the foregoing, Defendants' motion

to strike is GRANTED. Defendants are ordered to file a proposed form of judgment within ten days of this Order.

Defendants are ordered

to provide notice of this Order.

DATED: July

10, 2026

Hon. Teresa A.

Beaudet

Judge, Los

Angeles Superior Court